

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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VICTOR MEJIAS,	)	ECF CASE
	)	
Plaintiff,	)	2004 Civ. 08898 (VM)
-against-	)	
	)	COMPLAINT
CITY OF NEW YORK; POF JORDAN, individually and	)	
in his official capacity as a New York City Department of	)	JURY TRIAL IS DEMANDED
Homeless Services Peace Officer; POF LYONS,	)	
individually and in his official capacity as a New York City	)	
Department of Homeless Services Peace Officer; POF	)	
REYES, individually and in his official capacity as a New	)	
York City Department of Homeless Services Peace Officer;	)	
POF DELGADO, individually and in his official capacity	)	
as a New York City Department of Homeless Services	)	
Peace Officer; POF GUZMAN, individually and in his	)	
official capacity as a New York City Department of	)	
Homeless Services Peace Officer; DET HELMUT	)	
DARBOUZE, individually and in his official capacity as a	)	
New York City Police Officer,	)	
	)	
Defendants.	)	
-----	X	

PRELIMINARY STATEMENT

1. This case arises from the unlawful assault, detention, arrest, and prosecution, of an innocent man. At 11:45 PM on August 11, 2003, Plaintiff, VICTOR MEJIAS entered the Emergency Assistance Unit (EAU) at 151 East 151st Street, Bronx NY as a homeless individual with his girlfriend and his three children. After his children passed through the metal detector, Mr. MEJIAS passed through the metal detector. Mr. MEJIAS had been an Emergency Medical Technician since 2001; as Mr. MEJIAS walked through the metal detector, the Emergency Medical Services (EMS) badge in his wallet caused the metal detector to ring. Defendants POF JORDAN, POF LYONS, POF REYES, POF DELGADO, POF GUZMAN, and DET HELMUT DARBOUZE, then approached him and yelled at him.

2. After Mr. MEJIAS explained that it might be his EMS badge, Defendants POF JORDAN, POF LYONS, POF REYES, POF DELGADO, POF GUZMAN, and DET HELMUT DARBOUZE without provocation or cause, began to harass Mr. MEJIAS, assaulted him about the head, neck, and abdomen, handcuffed him and dragged him to the back of the building.

3. Defendants POF JORDAN, POF LYONS, POF REYES, POF DELGADO, POF GUZMAN, and DET HELMUT DARBOUZE made repeated threats that they would further injure him, remove his children, and that he would lose his job and never work as an EMT again.

4. Although Mr. MEJIAS made clear that he was injured by the actions of Defendants, and requested medical attention, he was denied appropriate medical care to address the injuries he sustained as a result of their actions and was taken to Central Booking, where he only received EMS observation.

5. Desperate to cover up their illegal actions, defendants then conspired to and did fabricate criminal charges, to make their actions appear justified. The charges against Mr. MEJIAS were ultimately dismissed.

6. In this civil rights action, the plaintiff, VICTOR MEJIAS, seeks relief for the defendants' violation of his rights secured by the Civil Rights Act of 1871, 42 U.S.C. Section 1983, and of rights secured by the Fourth and Fourteenth Amendments to the Constitution of the United States, and of rights secured under the common law and the Constitution of the State of New York.

7. The plaintiff seeks damages, both compensatory and punitive, affirmative and equitable relief, an award of costs, interest and attorney's fees, and such other and further relief as this court deems equitable and just.

JURISDICTION

8. This action is brought pursuant to 42 U.S.C. § 1983 and the Fourth and Fourteenth Amendments to the Constitution of the United States. Jurisdiction is conferred upon this Court by 42 U.S.C. § 1983 and 28 U.S.C. §§ 1331 and 1343(3) and (4), this being an action seeking redress for the violation of plaintiff's constitutional and civil rights.

9. Plaintiff's claim for declaratory and injunctive relief is authorized by 28 U.S.C. §§ 2201 and 2202 and Rule 57 of the Federal Rules of Civil Procedure.

10. Plaintiff further invokes this Court's pendent jurisdiction, pursuant to 28 U.S.C. § 1367(a), over any and all state law claims and as against all parties that are so related to claims in this action within the original jurisdiction of this Court that they form part of the same case or controversy.

JURY TRIAL DEMANDED

11. Plaintiff demands a trial by jury on each and every one of his claims as pleaded herein.

VENUE

12. Venue is proper for the United States District Court for the Southern District of New York pursuant to 28 U.S.C. § 1391 (a), (b) and (c).

NOTICES OF CLAIM

13. Plaintiff filed a Notice of Claim with the Comptroller of the City of New York on August 11, 2003, within ninety (90) days of the events complained of herein.

14. More than thirty (30) days have elapsed since the filing of such notices, and adjustment or payment thereof has been neglected or refused.

15. No demand for a 50-H examination was made within 90 days of the filing of the Notice of Claim.

16. This action has been commenced within one year and ninety days after the occurrence of the events upon which these claims arise.

PARTIES

17. Plaintiff VICTOR MEJIAS was thirty-two (32) years old at the time of the incident. He is a citizen and resident of the United States, and was at all times relevant herein a resident of the CITY OF NEW YORK, State of New York, and of full age.

18. Defendant CITY OF NEW YORK is and was at all times relevant herein a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain peace officers and police officers that act as its agents in the area of law enforcement and for which it is ultimately responsible. Defendant CITY OF NEW YORK assumes the risks incidental to the maintenance of a peace force and police force and the employment of peace officers and police officers as said risk attaches to the public consumers of the services provided by members of the New York City Department of Homeless Services and New York City Police Department. Defendant CITY OF NEW YORK was at all times relevant herein the public employer of defendants POF JORDAN, POF LYONS, POF REYES, POF DELGADO, POF GUZMAN, and DET HELMUT DARBOUZE

19. Defendant POF JORDAN, was at all relevant times duly appointed and acting officer, servant, employee and agent of the New York City Department of Homeless Services and New York City Police Department, municipal agencies of defendant CITY OF NEW YORK. Defendant POF JORDAN was at all relevant times acting under the direction and control of the New York City Department of Homeless Services and New York City Police

Department, municipal agencies of defendant CITY OF NEW YORK, and was acting pursuant to the official policy, or the custom, practice and usage of the New York City Department of Homeless Services and New York City Police Department, municipal agencies of defendant CITY OF NEW YORK. Defendant POF JORDAN is sued individually and in his official capacity.

20. Defendant POF LYONS, was at all relevant times duly appointed and acting officer, servant, employee and agent of the New York City Department of Homeless Services and New York City Police Department, municipal agencies of defendant CITY OF NEW YORK. Defendant POF LYONS was at all relevant times acting under the direction and control of the New York City Department of Homeless Services and New York City Police Department, municipal agencies of defendant CITY OF NEW YORK, and was acting pursuant to the official policy, or the custom, practice and usage of the New York City Department of Homeless Services and New York City Police Department, municipal agencies of defendant CITY OF NEW YORK. Defendant POF LYONS is sued individually and in his official capacity.

21. Defendant POF REYES, was at all relevant times duly appointed and acting officer, servant, employee and agent of the New York City Department of Homeless Services and New York City Police Department, municipal agencies of defendant CITY OF NEW YORK. Defendant POF REYES was at all relevant times acting under the direction and control of the New York City Department of Homeless Services and New York City Police Department, municipal agencies of defendant CITY OF NEW YORK, and was acting pursuant to the official policy, or the custom, practice and usage of the New York City Department of Homeless Services and New York City Police Department, municipal agencies defendant CITY OF NEW YORK. Defendant POF REYES is sued individually and in his official capacity.

22. Defendant POF DELGADO, was at all relevant times duly appointed and acting officer, servant, employee and agent of the New York City Department of Homeless Services and New York City Police Department, municipal agencies of defendant CITY OF NEW YORK. Defendant POF DELGADO was at all relevant times acting under the direction and control of the New York City Department of Homeless Services and New York City Police Department, municipal agencies of defendant CITY OF NEW YORK, and was acting pursuant to the official policy, or the custom, practice and usage of the New York City Department of Homeless Services and New York City Police Department, municipal agencies of defendant CITY OF NEW YORK. Defendant POF DELGADO is sued individually and in his official capacity.

23. Defendant POF GUZMAN, was at all relevant times duly appointed and acting officer, servant, employee and agent of the New York City Department of Homeless Services and New York City Police Department, municipal agencies of defendant CITY OF NEW YORK. Defendant POF GUZMAN was at all relevant times acting under the direction and control of the New York City Department of Homeless Services and New York City Police Department, municipal agencies of defendant CITY OF NEW YORK, and was acting pursuant to the official policy, or the custom, practice and usage of the New York City Department of Homeless Services and New York City Police Department, municipal agencies of defendant CITY OF NEW YORK. Defendant POF GUZMAN is sued individually and in his official capacity.

24. Defendant DET HELMUT DARBOUZE, was at all relevant times duly appointed and acting officer, servant, employee and agent of the New York City Department of Homeless Services and New York City Police Department, municipal agencies of defendant CITY OF

NEW YORK. Defendant DET HELMUT DARBOUZE was at all relevant times acting under the direction and control of the New York City Department of Homeless Services and New York City Police Department, municipal agencies of defendant CITY OF NEW YORK, and was acting pursuant to the official policy, or the custom, practice and usage of the New York City Department of Homeless Services and New York City Police Department, municipal agencies of defendant CITY OF NEW YORK. Defendant DET HELMUT DARBOUZE is sued individually and in his official capacity.

25. At all relevant times, defendants POF JORDAN, POF LYONS, POF REYES, POF DELGADO, POF GUZMAN, and DET HELMUT DARBOUZE were acting under color of the laws, statutes, ordinances, regulations, policies, customs and usages of the State of New York, and the New York City Department of Homeless Services and New York City Police Department, municipal agencies of defendant CITY OF NEW YORK, and were acting in the course and scope of their duties and functions as officers, agents, servants, and employees of the New York City Department of Homeless Services and New York City Police Department, municipal agencies of defendant CITY OF NEW YORK, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. At all relevant times, they were acting for and on behalf of the New York City Department of Homeless Services and New York City Police Department, municipal agencies of defendant CITY OF NEW YORK, with the power and authority vested in them as officers, agents, servants and employees of the New York City Department of Homeless Services and New York City Police Department, municipal agencies of defendant CITY OF NEW YORK.

FACTUAL AND GENERAL ALLEGATIONS

26. On the night of August 11, 2003, just after 11:45 p.m., plaintiff VICTOR MEJIAS entered the Emergency Assistance Unit, at 151 East 151st Street, County of the Bronx, with his three children.

27. Mr. MEJIAS passed through the metal detector, causing the metal detector to ring.

28. Mr. MEJIAS was asked to pass through the metal detector a second time, and POF JORDAN removed his wallet and saw Mr. MEJIAS' EMS Worker badge.

29. Mr. MEJIAS explained that he is an EMS worker.

30. At that point, the Defendants POF JORDAN began to curse Mr. MEJIAS, and push him in front of his children.

31. The Defendants POF JORDAN, POF LYONS, POF REYES, POF DELGADO, POF GUZMAN, and DET HELMUT DARBOUZE then grabbed Mr. MEJIAS by the arms and neck, and began to punch him in the stomach in front of his children.

32. The Defendants POF JORDAN, POF LYONS, POF REYES, POF DELGADO, POF GUZMAN, and DET HELMUT DARBOUZE dragged Mr. MEJIAS to the back of the EAU, mocked him, handcuffed him, and removed his ID and badge.

33. Mr. MEJIAS children left the EAU with his girlfriend at that time.

34. The Defendants POF JORDAN, POF LYONS, POF REYES, POF DELGADO, POF GUZMAN, and DET HELMUT DARBOUZE continued to beat Mr. MEJIAS about the head, and punched the side of his head into a locker.

35. Defendants POF JORDAN, POF LYONS, POF REYES, POF DELGADO, POF GUZMAN, and DET HELMUT DARBOUZE told Mr. MEJIAS he would never work again.

36. Defendants POF JORDAN, POF LYONS, POF REYES, POF DELGADO, POF GUZMAN, and DET HELMUT DARBOUZE called Mr. MEJIAS' employer while he was handcuffed, and told his employer of his arrest, leading ultimately to the loss of his job.

37. The Defendants told Mr. MEJIAS he was being arrested for pretending to be a police officer.

38. Mr. MEJIAS asked to please speak to a police officer and was informed by Defendants that "We are the police."

39. As a result of the multiple assaults, Mr. MEJIAS suffered physical injuries, including, *inter alia*, lacerations, abrasions, and pain to his head, neck, and abdomen.

40. Mr. MEJIAS informed the Defendants POF JORDAN, POF LYONS, POF REYES, POF DELGADO, POF GUZMAN, and DET HELMUT DARBOUZE that he was injured and required medical attention.

41. The Defendants then told Mr. MEJIAS "you are an EMS worker, take care of yourself."

42. Defendants then took Mr. MEJIAS to Lincoln Medical Health Center, where he waited for two hours with one of the Defendants.

43. Mr. MEJIAS girlfriend and children followed him to the hospital; upon entering the hospital they were told by Defendants DELGADO and REYES that they had to leave or they would arrest her.

44. Defendants DELGADO and REYES discovered that an emergency was coming into the hospital, and upon hearing how long the wait would be, Defendants removed Mr. MEJIAS from the hospital before he received treatment.

45. Defendants DELGADO and REYES removed Mr. MEJIAS from the hospital without signing him out or following any hospital procedures.

46. Mr. MEJIAS was then taken to Central Booking where he stayed for approximately six hours, and received only EMS medical supervision.

47. Defendants knew, or with due diligence should have known, of the need to get Mr. MEJIAS immediate medical attention, but they intentionally, or through deliberate indifference, declined to make the necessary notifications.

48. Because of his medical history and symptoms, the police should have taken Mr. MEJIAS directly to a hospital and allowed him to stay at the hospital to receive the necessary treatment.

49. The individual police officer and peace officer defendants were all present at the time that these events were occurring, and observed and/or heard portions of what had happened but failed to intercede and/or report it to supervisory personnel, and failed to protect Mr. MEJIAS while in custody.

50. Under the oath of office and the written rules and regulations promulgated by the NYPD and DHS peace officers, line officers and command personnel have an affirmative duty to intercede and prevent crimes and other misconduct committed by officers and to report such conduct whenever they become aware of it.

51. The individual police officer and peace officer defendants failed to intercede on behalf of Mr. MEJIAS, and failed to report the misconduct detailed above and below.

52. Upon information and belief, subsequent to the false arrest of Mr. MEJIAS on August 11, 2003, the defendants conspired to and did fabricate a false account of the events surrounding Mr. MEJIAS' arrest. As a result of this conspiracy to fabricate a false account of

the events surrounding his arrest, Mr. MEJIAS was wrongfully incarcerated, illegally searched, and falsely charged with the crimes of Criminal Possession of a Forged Instruments, Resisting Arrest, Criminal Impersonation, and Disorderly Conduct.

53. Upon information and belief, the individual officer defendants POF JORDAN, POF LYONS, POF REYES, POF DELGADO, POF GUZMAN, and DET HELMUT DARBOUZE entered into the conspiracy hereinabove described for the purpose of depriving Mr. MEJIAS of his constitutional rights, by allowing him to be unreasonably and unjustifiably assaulted, arrested, and imprisoned by fellow officers, and also for the purpose of covering up the unlawful and unconstitutional actions of and for the unlawful and unconstitutional actions of each other.

54. At no time during the events described above did the defendant officers have probable cause for the arrest of Mr. MEJIAS, and there was no legal cause or excuse for his seizure. At no time did Mr. MEJIAS assault or harass any police officer, resist arrest, possess forged instruments, or impersonate an officer.

55. On August 12, 2003, DET HELMUT DARBOUZE swore to a false and fabricated account of the events surrounding plaintiff's arrest in a supporting deposition.

56. Mr. MEJIAS was arraigned on the charges detailed above on August 12, 2003, under docket number 2003BX044560.

57. Mr. MEJIAS was released on his own recognizance. He was wrongfully imprisoned by the Defendants for a period of approximately twelve (12) to twenty-four (24) hours.

58. On May 7, 2004, DET HELMUT DARBOUZE swore to a second false and fabricated account of the events surrounding plaintiff's arrest in a supporting deposition.

59. Mr. MEJIAS was required to appear in court on at least eleven (11) occasions to defend himself against the criminal charges brought against him: August 13, 2003, September 24, 2003, October 16, 2003, December 10, 2003, February 3, 2004, March 12, 2004, May 4, 2004, June 24, 2004, July 28, 2004, September 22, 2004, and October 7, 2004.

60. On October 7, 2004, Mr. MEJIAS' case was dismissed and sealed.

61. The conduct of defendants POF JORDAN, POF LYONS, POF REYES, POF DELGADO, POF GUZMAN, and DET HELMUT DARBOUZE in assaulting, restraining, falsely arresting, falsely imprisoning, illegally searching, and maliciously prosecuting Mr. MEJIAS directly and proximately caused plaintiff serious physical and emotional injury, pain and suffering, mental anguish, humiliation and embarrassment, and the loss of employment and wages.

62. The assault on Mr. MEJIAS, as described above, by defendants POF JORDAN, POF LYONS, POF REYES, POF DELGADO, POF GUZMAN, and DET HELMUT DARBOUZE was far in excess of their rightful authority as New York City Police Officers and peace officers. This assault on plaintiff was made without proper cause.

63. The arrest, detention, and prosecution of Mr. MEJIAS were totally without probable cause, and were done maliciously, falsely and in bad faith. Defendants POF JORDAN, POF LYONS, POF REYES, POF DELGADO, POF GUZMAN, and DET HELMUT DARBOUZE acted with reckless and wanton disregard for the rights of the plaintiff.

64. As a result of all of the acts alleged herein, Mr. MEJIAS has suffered and continues to suffer physical and emotional injury and pain, mental pain and anguish, and emotional distress and the loss of employment and wages.

FIRST CLAIM

**DEPRIVATION OF RIGHTS UNDER THE FOURTH AND FOURTEENTH
AMENDMENTS AND 42 U.S.C. § 1983**

65. The plaintiff incorporates by reference each preceding allegation as if fully set forth herein.

66. The conduct and actions of defendants POF JORDAN, POF LYONS, POF REYES, POF DELGADO, POF GUZMAN, and DET HELMUT DARBOUZE, acting under color of law, in arresting and imprisoning Mr. MEJIAS absent probable cause, were done intentionally, maliciously, with a deliberate indifference and/or with a reckless disregard for the natural and probable consequences of their acts, were done without lawful justification or reason, and were designed to and did cause specific and serious harm, pain and suffering in violation of plaintiff's Constitutional rights as guaranteed under 42 U.S.C. § 1983, and the Fourth and Fourteenth Amendments to the United States Constitution.

67. As a result of the foregoing, plaintiff was deprived of his liberty, sustained painful injuries to his body, was made ill, was subject to great humiliation, and was otherwise damaged and injured.

SECOND CLAIM

**DEPRIVATION OF RIGHTS UNDER THE FOURTH AND FOURTEENTH
AMENDMENTS AND 42 U.S.C. § 1983**

68. The plaintiff incorporates by reference each preceding allegation as if fully set forth herein.

69. The conduct and actions of defendants POF JORDAN, POF LYONS, POF REYES, POF DELGADO, POF GUZMAN, and DET HELMUT DARBOUZE acting under color of law, in falsifying and fabricating, and conspiring to falsify and fabricate, an account of

the events surrounding the arrest and assault on Mr. MEJIAS, upon which a police complaint and police information against plaintiff was based, were done intentionally, maliciously, with a deliberate indifference and/or with a reckless disregard for the natural and probable consequences of their acts, were done without lawful justification or reason, and were designed to and did cause specific and serious harm, pain and suffering in violation of plaintiff's Constitutional rights as guaranteed under 42 U.S.C. § 1983, and the Fourth and Fourteenth Amendments to the United States Constitution.

70. As a result of the foregoing, plaintiff was deprived of his liberty, sustained painful injuries to his body, was made ill, was subject to great humiliation, and was otherwise damaged and injured.

THIRD CLAIM

DEPRIVATION OF RIGHTS UNDER THE FOURTH AND FOURTEENTH AMENDMENTS AND 42 U.S.C. § 1983

71. The plaintiff incorporates by reference each preceding allegation as if fully set forth herein.

72. The conduct and actions of defendant DET HELMUT DARBOUZE, acting under color of law, in making false statements under oath in the supporting depositions against Mr. MEJIAS, were done intentionally, maliciously, with a deliberate indifference and/or with a reckless disregard for the natural and probable consequences of his acts, were done without lawful justification or reason, and were designed to and did cause specific and serious bodily harm, pain and suffering in violation of plaintiff's Constitutional rights as guaranteed under 42 U.S.C. § 1983, and the Fourth and Fourteenth Amendments to the United States Constitution.

73. As a result of the foregoing, plaintiff was deprived of his liberty, sustained painful injuries to his body, was made ill, was subject to great humiliation, and was otherwise damaged and injured.

FOURTH CLAIM

**DEPRIVATION OF RIGHTS UNDER THE FOURTH AND FOURTEENTH
AMENDMENTS AND 42 U.S.C. § 1983**

74. The plaintiff incorporates by reference each preceding allegation as if fully set forth herein.

75. The conduct and actions of defendants POF JORDAN, POF LYONS, POF REYES, POF DELGADO, POF GUZMAN, and DET HELMUT DARBOUZE, acting under color of law, in failing to intercede or take any steps to protect Mr. MEJIAS from the unjustified and unconstitutional treatment he was receiving at the hands of the peace officer and police officer defendants, were done intentionally, maliciously, with a deliberate indifference and/or with a reckless disregard for the natural and probable consequences of their acts, were done without lawful justification or reason, and were designed to and did cause specific and serious pain and suffering in violation of plaintiff's Constitutional rights as guaranteed under 42 U.S.C. § 1983, and the Fourth and Fourteenth Amendments to the United States Constitution.

76. As a result of the foregoing, plaintiff was deprived of his liberty, sustained painful injuries to his body, was made ill, was subject to great humiliation, and was otherwise damaged and injured.

FIFTH CLAIM

**DEPRIVATION OF RIGHTS UNDER THE FOURTH AND FOURTEENTH
AMENDMENTS AND 42 U.S.C. § 1983**

77. The plaintiff incorporates by reference each preceding allegation as if fully set forth herein.

78. The conduct and actions of the defendants POF JORDAN, POF LYONS, POF REYES, POF DELGADO, POF GUZMAN, and DET HELMUT DARBOUZE, acting under color of law, in maliciously prosecuting Mr. MEJIAS, were done intentionally, maliciously, with a deliberate indifference and/or with a reckless disregard for the natural and probable consequences of their acts, were done without lawful justification or reason, and were designed to and did cause specific and serious pain and suffering in violation of plaintiff's Constitutional rights as guaranteed under 42 U.S.C. § 1983, and the Fourth and Fourteenth Amendments to the United States Constitution.

79. As a result of the foregoing, plaintiff was deprived of his liberty, was subject to great humiliation, and was otherwise damaged and injured.

SIXTH CLAIM

**UNLAWFUL RETALIATION FOR FIRST AMENDMENT CONDUCT
COGNIZABLE UNDER 42 U.S.C. § 1983**

80. Plaintiff incorporates by reference the allegations set forth in each preceding paragraph as if fully set forth herein.

81. The conduct and actions of defendants POF JORDAN, POF LYONS, POF REYES, POF DELGADO, POF GUZMAN, and DET HELMUT DARBOUZE in arresting, imprisoning, conspiring against, making false statements under oath about, maliciously prosecuting, and intentionally inflicting emotional distress upon Mr. MEJIAS, were a direct

result of defendants' animus toward plaintiff and/or as a direct result of plaintiff's having exercised his First Amendment rights to free speech and assembly. The defendants' conduct was therefore an unlawful, oppressive and malicious attempt to harass, intimidate, and punish plaintiff for exercising his constitutional rights, in violation of the First, Fourth and Fourteenth Amendments to the United States Constitution and 42 U.S.C. § 1983.

82. As a result of the foregoing, plaintiff was deprived of his constitutional rights and his liberty, sustained painful injuries to his body, was made ill, was subject to great humiliation, and was otherwise damaged and injured.

SEVENTH CLAIM

DEPRIVATION OF RIGHTS UNDER THE FOURTH AND FOURTEENTH AMENDMENTS AND 42 U.S.C. § 1983

83. The plaintiff incorporates by reference each preceding allegation as if fully set forth herein.

84. The conduct and actions of defendants POF JORDAN, POF LYONS, POF REYES, POF DELGADO, POF GUZMAN, and DET HELMUT DARBOUZE, acting under color of law, in assaulting Mr. MEJIAS and using objectively unreasonable excessive force, were done intentionally, maliciously, with a deliberate indifference and/or with a reckless disregard for the natural and probable consequences of their acts, were done without lawful justification or reason, and were designed to and did cause specific and serious harm, pain and suffering in violation of plaintiff's Constitutional rights as guaranteed under 42 U.S.C. § 1983, and the Fourth and Fourteenth Amendments to the United States Constitution.

85. As a result of the foregoing, plaintiff was deprived of his liberty, sustained painful injuries to his body, was made ill, was subject to great humiliation, and was otherwise damaged and injured.

EIGHTH CLAIM

**DEPRIVATION OF RIGHTS UNDER THE FOURTH AND FOURTEENTH
AMENDMENTS AND 42 U.S.C. §1983**

86. The plaintiff incorporates by reference each preceding allegation as if fully set forth herein.

87. The conduct and actions of defendants POF JORDAN, POF LYONS, POF REYES, POF DELGADO, POF GUZMAN, and DET HELMUT DARBOUZE, acting under color of law, by delaying and denying medical treatment to Mr. MEJIAS, was done intentionally, maliciously, with a deliberate indifference and/or with a reckless disregard for the natural and probable consequences of his acts, was done without lawful justification or reason, and was designed to and did cause specific and serious harm, pain and suffering in violation of plaintiff's Constitutional rights as guaranteed under 42 U.S.C. §1983, and the Fourth and Fourteenth Amendments to the United States Constitution.

88. As a result of the foregoing, plaintiff was deprived of his liberty, sustained painful injuries to his body, was made ill, was subject to great humiliation, and was otherwise damaged and injured.

NINTH CLAIM

**LIABILITY OF DEFENDANT CITY OF NEW YORK
FOR CONSTITUTIONAL VIOLATIONS**

89. Plaintiff incorporate by reference the allegations set forth in each preceding paragraph as if fully set forth herein.

90. At all times material to this complaint, defendant CITY OF NEW YORK, acting through Department of Homeless Services, had in effect de facto policies, practices, customs and usages that condoned and fostered the unconstitutional conduct of the defendant police officers

and peace officers, and were a direct and proximate cause of the damages and injuries complained of herein.

91. These policies, practices, customs and usages include, inter alia: (a) the failure to properly screen, train, supervise, discipline, transfer, counsel and/or otherwise control police officers and peace officers engaged in the excessive, unjustified use of force at the EAU; (b) the failure to properly screen, train, supervise, discipline, transfer, counsel and/or otherwise control police officers and peace officers engaged in securing the EAU; and (c) the police code of silence wherein police officers regularly cover-up police misconduct by telling false and incomplete stories, inter alia, in sworn testimony, official reports, in statements to the Civilian Complaint Review Board (“CCRB”) and the Internal Affairs Bureau, and in public statements.

92. The CCRB (constituted as a civilian, rather than police, agency in July 1993) is Defendant NEW YORK CITY’s primary agency dealing with allegations of police misconduct. Complaints may be made to the NYPD or directly to the CCRB.

93. Similarly, upon information and belief, complaints regarding DHS Peace Officers may be made in writing to Department of Homeless Services’ Office of Security.

94. Upon information and belief, those complaints are provided to either a disciplinary investigator or a private investigator.

95. Upon information and belief, the results of the investigation then go to the legal department or the Commissioner of Homeless Services’ office, depending on the severity of the case.

96. The public made a total of 11,991 allegations of police officer misconduct in 1999 in 4,810 complaints. Of these, 2,430 complaints were made to the CCRB and 2,368 to the NYPD. In 2000, the public made a total of 9,833 allegations of officer misconduct in 4,121

complaints. Of these, 1,741 complaints were made to the CCRB and 2,359 to the NYPD.

97. Of the 9,833 allegations of misconduct received in 2000, the CCRB substantiated as meritorious and referred to the NYPD for discipline a total of 372 allegations, or 3.78% -- a rate well below that of other major cities. These 372 substantiated allegations were contained in 189 cases. As of December 2000, 127 of these cases were still pending at the NYPD (as well as over a quarter of the cases referred for discipline during 1999).

98. In the year 2000, when presumably a substantial number of the 1999 allegations, along with allegations from prior years, would have come up for review and action, the NYPD conducted the following disciplinary activity:

- Termination, 3 officers;
- 20 to 30-day suspension with 1-year probation, 3 officers;
- 20 to 30-day loss of vacation pay and 1-year probation, 4 officers;
- 2 to 20-day suspension, 28 officers;
- 11 to 30-day loss of vacation pay, 24 officers;
- 2 to 10-day loss of vacation pay, 40 officers;
- Instructions (lecture or training), 72 officers.

99. Moreover, the CCRB does not adequately review complaints. From 1996 to 2000, only 46.6% of the complaints received what the CCRB characterizes as a "full investigation." Notably, the percentage of fully investigated cases was 33.1% in 1996, rose to 56.3% in 1997, but dropped to 48.6% in 1998, where it has basically remained through 2000.

100. These minuscule rates of accountability at CCRB and NYPD levels communicate unmistakably to every police officer on the force that NEW YORK CITY and its officials will by policy tolerate if not encourage all but the most egregious misconduct. They are a license to harm.

101. Upon information and belief, as NEW YORK CITY Peace Officers, all DHS Peace Officers receive their training and certification as Peace Officers from the New York City

Police Department.

102. Since at least 1984 the defendant CITY OF NEW YORK and the New York City Police Department have been on notice that their training of police officers has been inadequate and that police officers joining the force, including, on information and belief, the individual defendant police officers herein, were disproportionately involved in misconduct and abuse.

103. In 1990, the Office of Special Prosecutor, which investigated charges of police corruption, was abolished.

104. Upon information and belief, in the vast majority of police abuse cases that result in verdicts or substantial settlements for the victims, the New York City Department of Homeless Services and New York City Police Department imposes no discipline, either before or after the court resolution, almost never reopens an investigation previously conducted after such a resolution, and sometimes promotes the abusive officer to a position of greater authority despite the resolution.

105. The policy, practice, and custom of a code of silence is widespread, as evidenced by, inter alia:

a. New York County District Attorney Robert Morgenthau has been quoted as acknowledging that in the New York City Police Department there is a “code of silence,” or a “code of protection” that exists among officers and that is followed carefully.

b. In 1985 former Police Commissioner Benjamin Ward, testifying before a State Senate Committee, acknowledged the existence of the “code of silence” in the police department.

c. Anthony Bouza, former Bronx Borough Commander for the New York City Police Department, acknowledged the existence of a “code of silence” in the police

department and described it as “unbelievably powerful.” In fact, Bouza has stated that “[i]n New York the police code of silence is stronger than the mafia’s code of omerta.”

d. Former New York City Deputy Police Commissioner Robert Daly wrote in 1991 that the “blue wall of solidarity with its macho mores and prejudices, its cover-ups and silence, is reinforced every day in every way.”

106. Acting under color of law, by and through the policy-makers of the CITY OF NEW YORK and pursuant to official policy or custom and practice, the CITY OF NEW YORK intentionally, knowingly, recklessly, or with deliberate indifference to the rights of the inhabitants of the CITY OF NEW YORK failed to effectively screen, hire, train, instruct, supervise, control and discipline, on a continuing basis, their police officers and peace officers assigned to the EAU, including the defendant police officer and peace officers herein, for excessive force, for racial bias, for lack of truthfulness, for fabricating criminal charges and falsely swearing to criminal complaints against citizens for the purpose of shielding themselves against criminal and/or civil liability for violating those citizens’ civil rights, and for their failure to protect citizens from unconstitutional conduct of other police officers, thereby permitting and allowing the individual defendant police officers herein to be in a position to assault and/or unreasonably and unjustifiably restrain and search the plaintiff, to otherwise cause him injury and violate his federal and state constitutional rights, and/or to permit these actions to take place without his knowledge or consent.

107. On information and belief, the defendant police officers herein have been the subject of prior civilian and departmental complaints of misconduct that gave notice to, or should have given notice to, the defendant CITY OF NEW YORK and the New York City Department of Homeless Services and New York City Police Department that the defendant police officers

and peace officers herein were likely to engage in conduct that would violate the civil and constitutional rights of the public, such as the conduct complained of by the plaintiff herein. The CITY OF NEW YORK had knowledge of or, had it diligently exercised its duties to instruct, supervise, control, and discipline on a continuing basis, should have had knowledge that the wrongs that were done, as heretofore alleged, or other unlawful or unconstitutional acts were going to be committed. Defendant CITY OF NEW YORK had the power, authority and duty to prevent or aid in preventing the commission of said wrongs, could have done so, and intentionally, knowingly, recklessly or with deliberate indifference to the rights of the inhabitants of the CITY OF NEW YORK failed to do so.

108. On information and belief, defendant CITY OF NEW YORK and the New York City Department of Homeless Services and New York City Police Department maintained an inadequate structure for risk containment and stress management relative to its police and peace officers, and failed to create proper means of containing such risk and managing such stress. Inter alia, the structure was deficient, at the time of selection of police officers and thereafter during their employment, in its ability to evaluate and exchange information within the command structure about the performance of individual police and peace officers; in its training of supervisory personnel to effectively and adequately evaluate performance of an officer; and in its ability to otherwise put the command structure on notice that an individual or individuals were at significant levels of risk to the public at large or to specific segments thereof. The effect of this was to permit police and peace officers of the New York City Department of Homeless Services and New York City Police Department to function at levels of significant and substantial risk to the public in general.

109. As a result of the foregoing conscious policies, practices, customs and/or usages, defendant CITY OF NEW YORK and the New York City Department of Homeless Services and New York City Police Department have permitted and allowed the employment and retention of individuals as police officers whose individual circumstances place the public or segments thereof at substantial risk of being the victims of violent or racially motivated behavior. Such policies, practices, customs and/or usages are a direct and proximate cause of the conduct alleged herein and otherwise a direct and proximate cause of the injuries to the plaintiff herein.

110. As a direct and proximate result of the defendants' wrongful policies, practices, customs and/or usages complained of herein, the plaintiff has suffered permanent mental and emotional injury and pain, mental anguish, suffering, humiliation and embarrassment.

TENTH CLAIM

ASSAULT AND BATTERY

111. The plaintiff incorporates by reference each preceding allegation as if fully set forth herein.

112. By the actions described above, defendants POF JORDAN, POF LYONS, POF REYES, POF DELGADO, POF GUZMAN, and DET HELMUT DARBOUZE did inflict assault and battery upon the plaintiff herein. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Mr. MEJIAS and violated his statutory and common law rights as guaranteed him by the laws and Constitution of the State of New York.

113. As a result of the foregoing, plaintiff was deprived of his liberty, sustained painful injuries to his body, was made ill, was subject to great humiliation, and was otherwise damaged and injured.

ELEVENTH CLAIM

FALSE ARREST

114. The plaintiff incorporates by reference each preceding allegation as if fully set forth herein.

115. By the actions described above, defendants POF JORDAN, POF LYONS, POF REYES, POF DELGADO, POF GUZMAN, and DET HELMUT DARBOUZE had Mr. MEJIAS falsely arrested without reasonable or probable cause, illegally and without a warrant, and without any right or authority to do so. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the plaintiff and violated his statutory and common law rights as guaranteed him by the laws and Constitution of the State of New York.

116. As a result of the foregoing, plaintiff was deprived of his liberty, sustained painful injuries to his body, was made ill, was subject to great humiliation, and was otherwise damaged and injured.

TWELFTH CLAIM

FALSE IMPRISONMENT

117. The plaintiff incorporates by reference each preceding allegation as if fully set forth herein.

118. By the actions described above, defendants POF JORDAN, POF LYONS, POF REYES, POF DELGADO, POF GUZMAN, and DET HELMUT DARBOUZE falsely imprisoned and detained Mr. MEJIAS without reasonable or probable cause, illegally and without a warrant, and without any right or authority to do so. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the plaintiff and violated

his statutory and common law rights as guaranteed him by the laws and Constitution of the State of New York.

119. As a result of the foregoing, plaintiff was deprived of his liberty, sustained painful injuries to his body, was made ill, was subjected to great humiliation, and was otherwise damaged and injured.

THIRTEENTH CLAIM

MALICIOUS PROSECUTION

120. The plaintiff incorporates by reference each preceding allegation as if fully set forth herein.

121. By the actions described above, defendants POF JORDAN, POF LYONS, POF REYES, POF DELGADO, POF GUZMAN, and DET HELMUT DARBOUZE maliciously prosecuted Mr. MEJIAS herein, subjecting him to great indignity and humiliation, pain and distress of mind and body, preventing him from attending to his usual business, and injuring his good name and reputation. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the plaintiff and violated his statutory and common law rights as guaranteed him by the laws and Constitution of the State of New York.

122. As a result of the foregoing, plaintiff was deprived of his liberty, sustained painful injuries to his body, was made ill, was subject to great humiliation, and was otherwise damaged and injured.

FOURTEENTH CLAIM

INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

123. The plaintiff incorporates by reference each preceding allegation as if fully set forth herein.

124. By the actions described above, defendants POF JORDAN, POF LYONS, POF REYES, POF DELGADO, POF GUZMAN, and DET HELMUT DARBOUZE engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which intentionally caused severe emotional distress to Mr. MEJIAS. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the plaintiff and violated his statutory and common law rights as guaranteed him by the laws and Constitution of the State of New York.

125. As a result of the foregoing, plaintiff was made ill, was subjected to great humiliation, and was otherwise damaged and injured.

FIFTEENTH CLAIM

CONSPIRACY

126. The plaintiff incorporates by reference each preceding allegation as if fully set forth herein.

127. By the actions described above, defendants POF JORDAN, POF LYONS, POF REYES, POF DELGADO, POF GUZMAN, and DET HELMUT DARBOUZE jointly and severally, acting in their individual capacities and under color of law, conspired together and maliciously and willfully entered into a scheme to deprive Mr. MEJIAS of his rights, liberty, well-being and to commit the above-alleged unlawful acts. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the plaintiff and violated his rights as guaranteed him by the Fourth and Fourteenth Amendments to the Constitution of the United States, and protected by 42 U.S.C. § 1983, and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

128. As a result of the foregoing, plaintiff sustained painful injuries, was made ill, was subjected to great humiliation and emotional distress, was deprived of liberty and detained, and was otherwise damaged and injured.

SIXTEENTH CLAIM

NEGLIGENCE

129. The plaintiff incorporates by reference each preceding allegation as if fully set forth herein.

130. Defendants POF JORDAN, POF LYONS, POF REYES, POF DELGADO, POF GUZMAN, and DET HELMUT DARBOUZE, jointly and severally, failed to exercise due care and negligently caused physical injuries and caused extreme emotional distress to Mr. MEJIAS. The acts and conduct of defendants POF JORDAN, POF LYONS, POF REYES, POF DELGADO, POF GUZMAN, and DET HELMUT DARBOUZE alleged herein were the direct and proximate cause of injury and damage to the plaintiff and violated his statutory and common law rights as guaranteed him by the laws and Constitution of the State of New York.

131. As a result of the foregoing, plaintiff sustained painful injuries, was made ill, was subjected to great humiliation and emotional distress, was deprived of liberty and detained, and was otherwise damaged and injured.

SEVENTEENTH CLAIM

**NEGLIGENT HIRING, SCREENING, RETENTION,
SUPERVISION AND TRAINING**

132. The plaintiff incorporates by reference each preceding allegation as if fully set forth herein.

133. The defendant CITY OF NEW YORK negligently hired, screened, retained, supervised and trained the individual defendant police officers and peace officers. The acts and

conduct of the defendants were the direct and proximate cause of injury and damage to Mr. MEJIAS and violated his statutory and common law rights as guaranteed him by the laws and Constitution of the State of New York.

134. As a result of the foregoing, plaintiff sustained painful injuries, was made ill, was subjected to great humiliation and emotional distress, was deprived of liberty and detained, and was otherwise damaged and injured.

EIGHTEENTH CLAIM

RESPONDEAT SUPERIOR LIABILITY OF THE CITY OF NEW YORK FOR STATE LAW VIOLATIONS

135. The plaintiff incorporates by reference each preceding allegation as if fully set forth herein.

136. The conduct of the defendants POF JORDAN, POF LYONS, POF REYES, POF DELGADO, POF GUZMAN, and DET HELMUT DARBOUZE alleged herein occurred while they were on duty and in uniform, and in and during the course and scope of their duties and functions as New York City police officers and peace officers, and while they were acting as agents, officers, servants and employees of the defendant CITY OF NEW YORK, and as a result the defendant CITY OF NEW YORK is liable to Mr. MEJIAS pursuant to the state common law doctrine of *respondeat superior*.

137. As a result of the foregoing, plaintiff was deprived of his liberty, sustained painful injuries to his body, was made ill, was subject to great humiliation, and was otherwise damaged and injured.

WHEREFORE, plaintiff demands the following relief jointly and severally against all of the defendants:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empanelling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable, including injunctive and declaratory relief as may be required in the interests of justice.

Dated: Bronx, New York
November 9, 2004

/s/
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